

26STCV08717 26STCV08717

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-09-23

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Defendant's Demurrer to Plaintiff's Complaint

Defendant demurs to the first cause of action for breach of written contract.

A. Legal Standard

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in section 430.30, to the pleading on any one or more of the following grounds... (e) the pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible." (Code Civ. Proc., § 430.10.) "[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal. App. 5th 677, 695.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

B. Meet and Confer Requirement

Before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a).) "The demurring party shall file and serve with the demurrer a declaration stating either of the following: (A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith."

(Code Civ. Proc., § 430.41, subd. (a)(3).)

Defendants attached a declaration stating that the parties met and conferred with Plaintiff via email and telephonically, but were unable to reach an agreement. (Cordelli Decl., ¶¶ 7-14.) Defendants have satisfied the meet and confer requirement.

C. Breach of Written Contract

Defendant argues the Plaintiff fails to allege sufficient facts for the breach of written contract claim because the Complaint does not quote the relevant policy language, or plead its legal effect. Defendant requests the court sustain the demurrer and require Plaintiff to attach the policy to the Complaint.

Plaintiff has not opposed the Demurrer.

"To establish a cause of action for breach of contract, the plaintiff must plead and prove (1) the existence of the contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) resulting damages to the plaintiff." [Citation.] (Maxwell v. Dolezal (2014) 231 Cal.App.4th 93, 97-98.) "If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 229, 307.) "A written contract may be pleaded either by its terms – set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference – or by its legal effect. [Citations.]" (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.)

The complaint merely states the policy number and that Plaintiff presented a claim to Defendant in compliance with the terms of the policy. (See Compl., BC-1.) The Complaint does not allege the terms of the policy or attach a copy of the policy to the Complaint. Thus, the cause of action does not state sufficient facts for a breach of written contract claim. Accordingly, the Demurrer is sustained with leave to amend so the Plaintiff may either plead the terms of the policy or attach the policy to the Complaint.

CONCLUSION:

Accordingly, the Court SUSTAINS the Demurrer with leave to amend.

Moving party to give notice, unless waived.

Dated: September 23, 2026

Any party may submit on the tentative ruling by contacting the courtroom via email at Smcdept507@lacourt.org by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.